
MEMORANDUM

TO: Mayor Marian Orr, and City Council
FROM: Sara Vasquez, Purchasing Manager 
DATE: June 6, 2018
SUBJECT: Consideration to purchase in-car and body-worn camera systems, components and peripheral devices and related software and support service for the Police Department from WatchGuard, Allen, TX.

Cheyenne Police Department is needing to purchase in-car and body-worn camera systems, components and peripheral devices and related software and support service in the amount of \$769,647.00.

Cheyenne Police looked at two other systems and tried them both out for about a 4-month process. The committee got together and voted on the WatchGuard.

This is a sole source purchase through WatchGuard, Allen, TX. They are the sole manufacturer of the system we are wanting to purchase.

Funding Source: proceeds from sale of building
Contingent on SLIB Grant Award



REQUEST FOR SOLE/SINGLE SOURCE PURCHASE

DIRECTIONS:

Complete this form for all purchase requests with a sole/single source vendor. Send to the Purchasing Office before purchasing the item(s) along with the letter from the vendor indicating they are the sole/single supplier. If over \$34,999.99, attach a copy of the legal ad and place on council

Name: Rob Dalos

Date: 6/6/18

Division/Department: Police

ITEM DESCRIPTION: Body-worn and in-car camera system

AMOUNT OF PURCHASE: \$769,647.00

STATE REASON FOR SOLE SOURCE PURCHASE: WatchGuard is the sole provider of miniature body-worn cameras and record-after-the-fact functionality

Signature of Requesting Individual: _____

DIVISION/DEPARTMENT HEAD APPROVAL:

Name: Mr. M. Kozak

B. Kozak

Date: 6-6-18

COMMENTS: _____

For Purchasing Office use only:

Sole/Single Source Letter Attached: Yes / No

Legal Ad Attached: Yes / No

Finance Dates: June 18, 2018

City Council Dates: June 11 & 25, 2018

Approved by: Sarah Vasington

Date: 6-16-18

SOLUTION COST BREAKDOWN

Item #	Description	Qty.	Unit Price	Extended Price
IN-CAR CAMERA HARDWARE				
1	4RE High Definition In-Car Video System with Integrated VISTA XLT <i>Zero Sightline HD Front Camera Separate Back Seat Camera Integrated GPS Crash detection DVR with integrated 200GB automotive grade hard drive 16GB USB drive 4.3" touch screen remote display control panel Cabin microphone VISTA WiFi Wearable Camera 4RE, VISTA, Smart PoE Switch VISTA WiFi In-Car Charging / Transfer Base All mounting hardware and cabling and accessories needed for installation 1-Year warranty on ALL in-car components</i>	60	\$4,995.00	\$299,700.00
2	4RE High Definition In-Car Video System <i>Includes: Zero Sightline HD Front Camera Separate Back Seat Camera Integrated GPS Crash detection DVR with integrated 200GB automotive grade hard drive 16GB USB drive 4.3" touch screen remote display control panel Cabin microphone Hi-Fi Wireless microphone kit All mounting hardware and cabling and accessories needed for installation 1-Year warranty on ALL in-car components</i>	35	\$4,795.00	\$167,825.00
3	4RE In-Car 802.11n Wireless Kit, 5GHz <i>Includes: Radio, Antenna, PoE, 2-10' Ethernet Cables)</i>	95	\$190.00	\$18,050.00
4	HD Panoramic Camera Upgrade	95	\$190.00	\$18,050.00
BODY CAMERA HARDWARE				
5	VISTA HD, 8-Bay Ethernet Transfer Station	8	\$1,420.00	\$11,360.00
6	VISTA, Transfer Station, Table Top Rack, 8RU	8	\$105.00	\$840.00
7	VISTA XLT, Camera, Body-Mounted	45	\$239.00	\$10,755.00
8	Cable, XLT BWC, Right-angle, No Coil, 28"L, USB 3.1C Ends	45	\$20.00	\$900.00
9	VISTA HD, USB Charge and Upload Docking Base	20	\$90.00	\$1,800.00
EVIDENCE MANAGEMENT SOFTWARE				
10	Evidence Library 4 Site License	1	\$1,000.00	\$1,000.00
11	Evidence Library 4 - 4RE Device License	95	\$150.00	\$14,250.00
12	Evidence Library 4 - VISTA/4RE Combo-Discount Device License <i>Includes 1st year of Software Maintenance</i>	60	\$75.00	\$4,500.00
WARRANTIES AND MAINTENANCE				
13	Warranty, 4RE, In-Car, 1st Year (Months 1-12)	95	--	Included
14	Warranty, 4RE, In-Car, 2nd Year (Months 13-24)		\$100.00	\$0.00
15	Warranty, 4RE, In-Car, 3rd Year (Months 25-36)		\$200.00	\$0.00
16	Warranty, 4RE, In-Car, 4th Year (Months 37-48)		\$325.00	\$0.00
17	Warranty, 4RE, In-Car, 5th Year (Months 49-60)		\$450.00	\$0.00
18	Warranty, 4RE, 5 Year Hardware and Software Bundle	95	\$1,375.00	\$130,625.00
19	VISTA Warranty, 1st Year (Months 1-12)	60	--	Included
20	Warranty, VISTA WiFi, Hardware and Software Bundle <i>Replaces standard warranty and must be purchased up front</i>	60	\$650.00	\$39,000.00
21	Evidence Library 4 Software Maintenance, 1st Year <i>Included in Evidence Library Device License. Basic CLOUD-SHARE: 24 Shares per Device</i>	155	--	Included

IMPLEMENTATION SERVICES				
22	System Configuration - 1st Location <i>Includes:</i> Configuration services per location WG Technical Services on-site installing and configuring Evidence Library, Remote Client, and SQL database Programming all access points and available DVR units End-to-end system testing Training for: hardware end users, back office software users, and system administrators	1	\$2,500.00	\$2,500.00
23	Installation of the 4RE in car video system and removal (Clip and Terminate) of the Arbitrators	1	\$48,492.00	\$48,492.00
			Shipping	Included
			SOLUTION TOTAL	\$769,647.00

OPTIONAL ITEMS				
Item #	Description	Qty.	Unit Price	Extended Price
1	VISTA HD 7 Port USB Hub		\$30.00	
2	VISTA USB Charge and Upload Docking Base		\$95.00	
3	VISTA HD Chest Mount with Straps		\$80.00	
4	VISTA HD, Locking Magnetic Chest Mount (without Straps) - KIT1		\$50.00	
5	VISTA HD Duty Belt Clip		\$20.00	
6	VISTA HD Shirt Clip with Slider		\$30.00	
7	VISTA HD, Molle Vest Adapter Clip		\$20.00	
8	VISTA HD, Tripod Mount Base Adapter		\$35.00	
9	VISTA HD, Velcro Backing Plate (with Hook/Loop Velcro Set uninstalled)		\$20.00	
10	VISTA HD, "Klick Fast" Mount Adapter		\$35.00	
11	VISTA HD, Ram Mount Kit		\$35.00	
12	VISTA HD, Suction Cup RAM Mount Kit, 6" Arm		\$125.00	
13	VISTA HD Standard Battery, LI-ION, 3.6V 2700MAH		\$40.00	
14	VISTA HD Extended Battery, LI-ION, 3.6V 4050MAH		\$55.00	
15	Evidence Library 4 - Full Cloud Share (per device, per year)		\$45.00	
16	Evidence Library 4 - Extended Cloud Share (per device, per year)		\$100.00	
17	VISTA HD WIFI Wearable Camera <i>Includes: Mounting Hardware and One (1) Year warranty on ALL components</i>		\$995.00	
18	VISTA XLT Wi-Fi Enables Body-Mounted Camera Kit <i>Includes DVR, camera, cable, cable strain relief, choice of camera mount, choice of DVR holder, 1-year warranty</i>		\$1,095.00	
19	VISTA XLT Wi-Fi Enables Head-Mounted Camera Kit <i>Includes DVR, camera, cable, cable strain relief, choice of camera mount, choice of DVR holder, 1-year warranty</i>		\$1,095.00	
20	Oakley Flak Jacket Glasses		\$149.95	
21	4RE, VISTA, Smart PoE Switch		\$250.00	
22	VISTA Vehicle Trigger Kit		\$795.00	
23	VISTA, VISTA HD, WIFI Charging Radio Base Station		\$200.00	



25th of January 2018

Prospective WatchGuard Video Customer

Reference: WatchGuard Video Sole Source Letter

To whom it may concern:

WatchGuard Video is the exclusive and sole manufacturer of the DV-1 Digital In-Car Video System, the 4RE Digital In-Car Video System, the High Fidelity Wireless Microphone System, and the VISTA wearable camera system. With the exception of the following agreements, these products are represented and sold only by WatchGuard Video Regional Sales Managers selling factory direct in protected sales territories. The exceptions to this are agreements allowing resellers to distribute WatchGuard products on a General Services Administration Contract (GSA), and State Contracts in Pennsylvania, Louisiana, and New Jersey.

Additionally, several important and unique features are available only with these products;

DV-1 and 4RE Unique Features

- Record-After-The-Fact provides the ability to retrieve video not previously recorded as an event for up to 60 hours of ignition time for retrieval and downloading.
- Through the automatic media overflow function, a DVD (DV-1) or Removable USB Drive (4RE) can be full and the hard drive buffer stores all video until a new DVD or USB Drive is placed in the system. At that time all of the recorded events are captured without 1 second of loss.

DV-1

- The system records digital video onto rewritable DVD-Video discs that play in consumer DVD players, allowing for the actual evidence recorded in the car to be the exact evidence presented in court. The system records pre and post event as part of the same Title and not separated. The DVD burning process happens in real-time, and while in motion.
- Supervisors can recover up to 6 of the previous DVDs recorded in the event a DVD is damaged. The system creates a mirror image of the original.
- The DVD recorder is isolated from shock and vibration using a silicone-oil dampened suspension system.
- The complete system is offered in a 1-Piece overhead mounted version that mounts conveniently using an overhead mounting bracket.



4RE

- 4RE is the only high-definition digital in-car video system available today that features the Patented multiple resolution encoding. This allows the front camera to record in two different IACP compliant resolutions simultaneously, allowing the most critical events to be saved in 720P high-definition and the routine events to be saved in 480P (864x480) resolution.
- 4RE exclusively offers the Panoramic X2 camera, manufactured only by WatchGuard Video, which is the industry's only dual lens, rotatable turret camera which houses a 68 degree rotatable camera and a 150 degree panoramic camera.

Wireless Microphone

- The Hi-Fi microphone has near CD quality high fidelity sound, a line of sight range of one to two miles, and superior building penetration capabilities.
- Using patent pending intelligent standby and a lithium polymer battery gives the microphone its extraordinary battery life of up to 24 hours of talk time, and up to 30 days of standby time.
- The wireless microphone holsters are manufactured exclusively for WatchGuard and manufactured to WatchGuard transmitter specification.

VISTA

- VISTA is constructed with industrial grade components and is manufactured in the U.S.A. It is capable of recording both High Definition and Standard Definition video, and battery life capable of record up to 9 continuous hours of HD video. VISTA has other unique features, including:
 - The only wearable camera to integrate with the WatchGuard Video Evidence Library and Evidence Library Express video and evidence management applications.
 - Record-After-The-Fact which gives the ability to retrieve video not previously recorded as an event
 - VISTA WiFi is the only wearable camera system that can fully integrate with the 4RE HD Digital In-Car Video system to seamlessly capture and synchronize video from multiple vantage points.

Respectfully submitted,

Chief Mike Burrige (Ret)
Senior Vice President of Sales
WatchGuard Video

REQUEST TO PURCHASE OVER \$35,000.00

The City of Cheyenne requests to purchase in-car and body-worn camera systems, components and peripheral devices and related software and support service for the Police Department from WatchGuard, Allen, TX in the amount of \$769,647.00. This is a single source purchase; therefore, no bids were requested.

This will be reviewed by City Council at Finance on June 18, 2018 and voted on at the June 25, 2018 City Council meeting.

If you have any questions, please call Sara Vasquez at 307/637-6345.

Sara Vasquez
Purchasing Manager
CITY OF CHEYENNE, WY

Published in: Wyoming Tribune-Eagle
Dates: June 11 & 18, 2018



Approved as to
form only:

Date: 6-6-18

PURCHASING AND SERVICES AGREEMENT

This Purchasing and Services Agreement (the "**Agreement**") is entered into on _____ by and between WatchGuard, Inc., a Delaware corporation with offices located at 415 Century Parkway, Allen, TX 75013 ("**WatchGuard**", "**we**", or "**us**") and the City of Cheyenne, a Wyoming municipal corporation, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("**Agency**", or "**you**"). WatchGuard and the Agency may be referred to individually as a "**Party**" and collectively as the "**Parties**".

WHEREAS, WatchGuard sells in-car and body-worn camera systems, components and peripheral devices and related evidence management software and support services for use by law enforcement agencies (collectively, the "**WatchGuard Products and Services**"); and

WHEREAS, the Agency wishes to purchase from WatchGuard the WatchGuard Products and Services listed on the schedules and Scope of Work attached to this Agreement, and WatchGuard desires to provide the WatchGuard Products and Services to the Agency in accordance with, and subject to, the terms and conditions set forth in this Agreement.

I. DEFINITIONS

"**Action**" means any claim, action, cause of action, demand, lawsuit, arbitration, inquiry, audit, notice of violation, proceeding, litigation, citation, summons, subpoena or investigation of any nature, civil, criminal, administrative, regulatory or other, whether at law, in equity, or otherwise.

"**Agency Content**" means information, data, and other content, in any form or medium, that is collected, downloaded, compiled or processed by the Agency using the Software, by or through the Services or that incorporates or is derived from the processing of such information, data, or content by or through the Software or the Services.

"**Agreement**" means this agreement, and the following: Schedules 1, 2, 3, and 4, attached hereto and incorporated herein.

"**Amendment**" means a modification or change to this Agreement that is mutually agreed upon by WatchGuard and the Agency in writing.

"**Confidential Information**" means information in any form or medium (whether oral, written, electronic, or other) that a Party considers confidential or proprietary, including information consisting of or relating to the disclosing Party's Intellectual Property Rights (defined below) technology, trade secrets, know-how, business operations, plans, strategies, customers, and pricing, and information with respect to which the disclosing Party has contractual or other confidentiality obligations, in each case whether or not marked, designated, or otherwise identified as "confidential".

"**Effective Date**" means the date on which the last signature is affixed to this Agreement.

"**Hardware**" means the camera systems, connectors, components and peripheral devices, and related device licenses, listed in Schedule 1 to this Agreement.

"**Hardware Maintenance Plan**" means our agreement to maintain and support the Hardware, as set forth in Schedule 4 to this Agreement.

"**Intellectual Property Rights**" means all intellectual and proprietary rights, including but not limited to, invention and patents for inventions, know-how, trade secrets, copyrights and trademarks.



"Losses" means any and all losses, damages, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees and the costs of enforcing any right to indemnification hereunder and the cost of pursuing any insurance providers.

"Project Manager" means, for each of WatchGuard and the Agency, the person designated as the Party's principal point of contact for administering and coordinating such Party's responsibilities under this Agreement, including management and oversight of the day-to-day work required of such Party.

"Scope of Work" means the Scope of Work prepared by WatchGuard and agreed to by the Agency, and attached to this Agreement as Schedule 1.

"Services" means all work described in Schedule 1 required to be performed by WatchGuard to deploy, install, configure, integrate, and render operational the Hardware and the Software.

"Software" means the WatchGuard proprietary evidence management platform described in Schedule 1. Software does not include any Third-Party Materials, software applications or commercially available software application, package or platform developed by the Agency or licensed to the Agency directly from a third party.

"Software Maintenance Plan" means our agreement to maintain and support the Software, as set forth in Schedules 3 and 4 to this Agreement.

"Specifications" means all specifications describing the features, functionality, and performance of the System, and identifying the Software and Hardware functions and capabilities needed to implement such features, functionality, and performance.

"Subcontractor" means any person or entity, other than an employee or affiliate of WatchGuard, that contracts with WatchGuard to perform Services.

"Support Services" has the meaning set forth in Section 2.5.

"System" means the Hardware and the Software together as configured, integrated, interconnected and implemented as described in the Scope of Work attached as Schedule 1 to this Agreement.

"Term" shall have the meaning set forth in Article VIII.

"Third-Party Materials" means materials, information, software, equipment, or components of or relating to the Services that are not proprietary to WatchGuard, or not otherwise approved by WatchGuard for use with the WatchGuard Products and Services, the Software, the Hardware, or the System.

"Warranties" means the warranties for the Hardware and Software listed on Schedule 2, Schedule 3, and Schedule 4 to this Agreement, respectively, and as described in Article V of this Agreement.

"WatchGuard Materials" means the Services, Specifications, and Systems and any and all other information, data, documents, materials, works, and other content, devices, methods, processes, hardware, software, and other technologies and inventions, including any deliverables, technical or functional descriptions, requirements, plans, or reports, that are provided or used by WatchGuard or any Subcontractor in connection with the Services or otherwise comprise or relate to the WatchGuard Products and Services or Systems.

"WatchGuard Products and Services" means the camera hardware systems and components, the software, and the support services listed and described in Schedules 1, 2, 3, and 4 attached hereto and incorporated herein.

II. WATCHGUARD OBLIGATIONS



2.1. System Delivery. According to the Specifications, and in accordance with the requirements set forth in Schedule 1 we will provide or cause to be provided, either (i) on-site or remote installation of the System, including without limitation, the Hardware and Software, by our employees or by a Subcontractor reasonably acceptable to you; or (ii) the Software, for your installation and configuration on your computer systems and infrastructure, without our provision of Services.

2.2. WatchGuard Work. As called for in Schedule 1 we will plan, design, develop, deliver, install, render operational, implement and support the System, and provide the Agency with all related deliverables and Services necessary to fulfill our obligations under this Agreement. Without limiting the foregoing, we will provide, or provide through a Subcontractor reasonably acceptable to the you, all labor, equipment, accessories, tools, and other items and do all work required to meet the Specifications and fulfill the requirements of the Scope of Work, where the same are not expressly set forth in this Agreement as being your responsibility.

2.3. Designation of Project Manager. We will designate an employee to serve as Project Manager; provided, that we may replace our Project Manager at any time, and from time to time, upon prior notice to you, with one or more employees having similar knowledge, skills and abilities.

2.4. Training. We will provide designated Agency personnel on-site and/or remote training reasonably required to ensure that such personnel are capable of properly and efficiently operating and maintaining the System. The training program is more specifically described in the Scope of Work.

2.5. Maintenance and Support Services. We will make available to you ongoing maintenance and support services as described in the Scope of Work and Warranties, the Hardware Maintenance Plan, and the Software Maintenance Plan. Such support shall include, but may not be limited to, updates to the Software or Hardware necessary for the Software or Hardware to continue to meet Warranty requirements and/or the Specifications. The duration of any warranty or maintenance plan provided under this Agreement shall run from the date of successful and satisfactory installation and configuration of the WatchGuard Products and Services.

2.6. Insurance. While performing the Services and during the Term, we will maintain in force and effect Commercial General Liability Insurance, Workers Compensation Insurance, and Commercial Automobile Insurance, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement, and will furnish you with certificates of insurance. The Commercial General Liability insurance policy shall include an endorsement naming the Agency as an additional insured. WatchGuard shall provide proof of Professional Liability Insurance in an amount not less than \$500,000 to protect the Agency from any and all claims arising from WatchGuard's negligence in the performance of duties under this Agreement. WatchGuard shall provide the Agency with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement. It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon WatchGuard to immediately notify in writing the Agency of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement. Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

III. AGENCY OBLIGATIONS

3.1. Approval. You agree to confer, coordinate and cooperate with us in determining whether to approve and accept the WatchGuard Products and Services, the System and the Specifications prior to us beginning to perform the Services. Notwithstanding the foregoing, your approval shall not operate as a waiver by you of any rights you may have under this Agreement, the Warranties, the Hardware Maintenance Plan, or the Software Maintenance Plan with regard to any non-conforming or defective WatchGuard Products and Services.

3.2. Designation of Project Manager. You agree to designate an employee to serve as Project Manager; provided, that you may replace your Project Manager at any time, and from time to time, upon prior notice to us



with one or more employees having similar knowledge, skills and abilities.

3.3. Access. You agree to provide our employees and approved Subcontractors access to Agency premises and equipment sufficient to allow us to perform the Services according to the Specifications, and to make Agency personnel, including your Project Manager, available at reasonable times and upon our prior request, to facilitate our access to Agency premises and equipment.

3.4. Operation of the System. You will be responsible for (a) use of the WatchGuard Products and Services by your employees, agents, contractors, and end-users; (b) Agency Content or the combination of Agency Content with other applications, content or processes, including any claim involving alleged infringement or misappropriation of third party rights by Agency Content or the use of Agency Content; (c) disputes between you and any third party over your use of the WatchGuard Products and Services or the collection or use of Agency Content; and (d) any hardware or networks that we do not authorize, approve or provide that you connect to or use in connection with the Software or Hardware following performance of the Services.

3.5. Payment of Fees. You agree to pay us the fees set forth in any invoice we submit to you, the total amount of all such invoices not to exceed Seven Hundred Sixty-Nine Thousand Six Hundred and Forty-Seven Dollars (\$769,647.00), for the Services, or in the Statement of Work, as it may be amended or supplemented by agreement of the Parties from time to time.

IV. INDEMNIFICATION

4.1. Indemnification by WatchGuard. We will indemnify, hold harmless and defend you and your officers, directors, employees, agents, permitted successors and permitted assigns (each, an "**Agency Indemnatee**") from and against any and all Losses incurred by the Agency or an Agency Indemnatee resulting from any Action by a third party alleging (i) that your use of the Software (excluding Agency Content and Third-Party Materials) in accordance with this Agreement (including the Specifications) infringes or misappropriates such third party's U.S. Intellectual Property Rights; or (ii) negligent acts, errors or omissions, or willful misconduct of WatchGuard under or related to this Agreement, or performance of the Services; or (iii) violation of this Agreement. The foregoing obligation does not apply to the extent that the Action arises from:

- (i) Third-Party Materials or Agency Content, unless caused by WatchGuard;
- (ii) access to or use of the WatchGuard Materials in combination with any hardware, system, software, network, or other materials or service that we did not provide or that was not specified for Agency use in the Scope of Work or Specifications;
- (iii) modification of the WatchGuard Materials other than: (a) by or on behalf of us; or (b) with our written approval in accordance with the Specifications;
- (iv) failure to timely implement any modifications, upgrades, replacements, or enhancements made available to you by or on behalf of us; or
- (v) act, omission, or other matter described in Articles III, IV, VII, or IX, unless caused by WatchGuard.

V. WARRANTIES

5.1. Hardware Warranty. We will provide you with warranty coverage for the Hardware upon the terms set forth in Schedule 2 and Schedule 4. The duration of any warranty or maintenance plan provided under this Agreement shall run from the date of successful and satisfactory installation and configuration of the WatchGuard Products and Services.

5.2. Software Warranty. We will provide you with the warranty coverage for the Software as set forth in Schedule 3 and Schedule 4. The duration of any warranty or maintenance plan provided under this Agreement shall run from the date of successful and satisfactory installation and configuration of the WatchGuard Products



and Services.

5.3. Warranty Limitations. Except for the express warranties set forth in the WatchGuard Warranties, all WatchGuard Products and Services are provided "as is." All Third-Party Materials are provided "as is" and any representation or warranty of or concerning any Third-Party Materials is strictly between you and the third-party owner or distributor of the Third-Party Materials.

5.4. Performance of Services. We warrant and represent to you that all of the WatchGuard Products and Services to be performed or provided pursuant to this Agreement shall be performed and provided with care, expertise, skill, and diligence generally consistent with prevailing industry standards and expertise by companies providing or performing similar products and services.

VI. INTELLECTUAL PROPERTY RIGHTS

6.1. WatchGuard Materials. We hereby grant to you a nonexclusive, perpetual, royalty-free license to use the Software consistent with the purposes of this Agreement. Except for the license rights in the Software expressly granted to you under this Agreement, we retain all right, title, and interest in and to the WatchGuard Materials, including all Intellectual Property Rights therein. With respect to Third-Party Materials, the applicable third-party providers own all right, title, and interest, including all Intellectual Property Rights, in and to the Third-Party Materials. You have no right, license, or authorization with respect to any of the WatchGuard Materials except as expressly set forth in this Agreement. We expressly retain all rights in and to the WatchGuard Materials not expressly granted herein.

6.2. Agency Content. As between you and us, you are and will remain the sole and exclusive owner of all right, title, and interest in and to all Agency Content, including all Intellectual Property Rights relating thereto. Provided however, you hereby grant all such rights and permissions in or relating to the Agency Content as are necessary or useful to us or our Subcontractors, to (a) provide the Services, (b) enforce this Agreement, and (c) exercise such rights as we or our Subcontractors may require to perform our obligations hereunder.

VII. CONFIDENTIAL INFORMATION

7.1. Disclosure. In connection with this Agreement each Party may disclose or make available Confidential Information to the other Party. Each Party will take all reasonable measures to avoid disclosure, dissemination or unauthorized use of the other Party's Confidential Information. Except as required by applicable law, neither Party will disclose the other Party's Confidential Information during the Term or at any time during the five-year period following expiration of the Term.

VIII. TERM AND TERMINATION

8.1. Initial Term. The initial term of this Agreement shall commence as of the Effective Date and, unless earlier terminated pursuant to any of this Agreement's express provisions, will continue in effect until five (5) years from such date (the "**Initial Term**").

8.2. Renewal. The Initial Term of this Agreement may be renewed for successive one (1) year terms by agreement of the Parties (each a "**Renewal Term**" and, collectively, together with the Initial Term, the "**Term**").

8.3. Termination. In addition to any other express termination right set forth elsewhere in this Agreement:

(a) we may terminate this Agreement, effective on written notice to you, if you: (i) fail to pay any amount when due hereunder, and such failure continues more than 30 days after we provide you with written notice thereof; or

(b) either Party may terminate this Agreement, effective on 30 days written notice to the other Party, if the other Party breaches any term or condition in this Agreement, and such breach: (i) is incapable of cure; or (ii) being capable of cure, remains uncured 30 days after the non-breaching Party provides the breaching Party with written notice of such breach; or



(c) you may terminate this Agreement if you fail to obtain or appropriate budgeted funds, or if funds are not otherwise legally available to pay the fees required under this Agreement such that your continued performance of your obligations under this Agreement is not possible, in which case you agree to provide us with written notice of termination at least 90 days prior to the end of your then-current fiscal year, or as soon as is reasonably practical under the circumstances; or

(d) you may, without cause, and upon 30 days written notice to us, terminate this Agreement in whole or in part at any time, for your convenience. Upon receipt of such notice, WatchGuard shall:

- i. Discontinue all services affected; and
- ii. Deliver to you within 5 days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by us in performing this Agreement, whether completed or in process.
- iii. In the event of termination for convenience, the Agency will pay WatchGuard for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

IX. MISCELLANEOUS

9.1. Further Assurances. Upon a Party's reasonable request, the other Party shall, at the requesting Party's sole cost and expense, execute and deliver all such documents and instruments as may be necessary to give full effect to this Agreement.

9.2. Relationship of the Parties. The relationship between the Parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture, or other form of joint enterprise, employment, or fiduciary relationship between the Parties, and neither Party shall have authority to contract for or bind the other Party in any manner whatsoever.

9.3. Notices. No notice, request, consent, claim, demand, waiver, or other communications under this Agreement shall be effective unless provided in writing and addressed to a Party as follows (or to such other address or such other person that such Party may designate from time to time in accordance with this Section 9.3):

If to Provider: 415 Century Parkway, Allen, TX 75013
Email:
Attention:

If to Customer: 415 W 18th St, Cheyenne, WY 82001
Email:
Attention: Lew Simpson

Notices sent in accordance with this Section 9.3 will be deemed effectively given: (a) when received, if delivered by hand, with signed confirmation of receipt; (b) when received, if sent by a nationally recognized overnight courier, signature required; (c) when sent, if by email, (with confirmation of transmission), if sent during the addressee's normal business hours, and on the next business day, if sent after the addressee's normal business hours; and (d) on the third day after the date mailed by certified or registered mail, return receipt requested, postage prepaid.

9.4. Entire Agreement. This Agreement, together with any other documents incorporated herein by reference, constitutes the sole and entire agreement of the Parties with respect to the subject matter of this Agreement and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter. In the event of any inconsistency between the statements made in the body of this Agreement, the related exhibits, schedules, and attachments and any other documents incorporated herein by reference, the following order of precedence governs: (a) first, this Agreement, excluding its exhibits, schedules, and attachments; (b) second, the exhibits, schedules, and attachments to this Agreement as of the Effective Date; and (c) third, any other documents incorporated herein by reference.

9.5. Assignment. Neither Party may assign or transfer this Agreement or its rights or obligations hereunder



without the prior written consent of the other party; provided, that upon 30 days written notice to you, we may assign or transfer this Agreement or any of our rights or obligations hereunder without your consent in connection with (a) the sale of all or substantially all of our stock or assets; (b) a merger or acquisition, whether we are the surviving or disappearing entity; (c) a corporate reorganization; or (d) transfer to a subsidiary or affiliate entity. This Agreement is binding upon and inures to the benefit of the parties hereto and their respective successors and permitted assigns.

9.6. Force Majeure.

(a) No Breach or Default. In no event will either Party be liable or responsible to the other Party, or be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement, (except for any obligations to make payments), when and to the extent such failure or delay is caused by any circumstances beyond such Party's reasonable control (a "**Force Majeure Event**"), including acts of God, flood, fire, earthquake or explosion, war, terrorism, invasion, riot or other civil unrest, embargoes or blockades in effect on or after the date of this Agreement, national or regional emergency, strikes, labor stoppages or slowdowns or other industrial disturbances, passage of law or any action taken by a governmental or public authority, including imposing an embargo, export or import restriction, quota, or other restriction or prohibition or any complete or partial government shutdown, or national or regional shortage of adequate power or telecommunications or transportation. Either Party may terminate this Agreement if a Force Majeure Event affecting the other Party continues substantially uninterrupted for a period of 30 days or more.

(b) Affected Party Obligations. In the event of any failure or delay caused by a Force Majeure Event, the affected Party shall give prompt written notice to the other Party stating the period of time the occurrence is expected to continue and use commercially reasonable efforts to end the failure or delay and minimize the effects of such Force Majeure Event.

9.7. No Third-Party Beneficiaries. This Agreement is for the sole benefit of the Parties hereto and their respective successors and permitted assigns and nothing herein, express or implied, is intended to or shall confer upon any other person any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.

9.8. Amendment and Modification; Waiver. No amendment to or modification of this Agreement is effective unless it is in writing and signed by each Party. No waiver by any Party of any of the provisions hereof shall be effective unless explicitly set forth in writing and signed by the Party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising, any rights, remedy, power, or privilege arising from this Agreement will operate or be construed as a waiver thereof; nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

9.9. Severability. If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Upon such determination that any term or other provision is invalid, illegal, or unenforceable, the Parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.

9.10. Equal Opportunity Compliance. In performing the Services we agree to abide by all applicable laws, regulations, and executive orders pertaining to equal employment opportunity, including federal laws and the laws of the State in which its primary place of business is located. In accordance with such laws, regulations, and executive orders, we agree that no person shall, on the grounds of race, color, religion, national origin, sex, age, veteran status or handicap, be excluded from employment with or participation in, be denied the benefits of, or be otherwise subjected to discrimination under any program or activity we perform in connection with this Agreement. If we are



found to be non-compliant with these requirements in performing the Services or during the term of the Agreement, we agree to take appropriate steps to correct these deficiencies. Upon request, and as required by applicable law, we will furnish information regarding our nondiscriminatory hiring and promotion policies, as well as specific information on the composition of our principals and staff, including the identification of minorities and women in management or other positions with discretionary or decision-making authority.

9.11. Default. Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

9.12. Remedies. In the event a party has been declared in default, such defaulting party shall be allowed a period of 30 days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- (a) Terminate this Agreement pursuant to Section 8.3(b), and seek damages, which damages shall not exceed the contract amount; or,
- (b) Treat the Agreement as continuing and require specific performance.

9.13. Governing Law. This Agreement is governed by and construed in accordance with the internal laws of the state in which the Agency is physically located, without reference to conflict of laws rules, and the venue shall be the First Judicial District, Laramie County, Wyoming. The United Nations Convention for International Sale of Goods does not apply to this Agreement.

9.14. Governmental Immunity. The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City of Cheyenne specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

9.15. Counterparts. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which together are deemed to be one and the same agreement. A signed copy of this Agreement delivered by facsimile, email, or other means of electronic transmission is deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

(Signature Page Follows)



IN WITNESS WHEREOF, the Parties hereto have executed this Purchases and Services Agreement as of the Effective Date.

CITY OF CHEYENNE

WATCHGUARD, INC.

By: _____

By: _____

Name Printed: Marian J. Orr

Name Printed: _____

Title: Mayor

Title: _____

Date: _____

Date: _____

(SEAL)

Attest:

Carol Intelkofer, City Clerk



SCHEDULE 1

SCOPE OF WORK

(SEE ATTACHED)



Schedule 1

Initial Services Statement of Work

Under the terms and conditions of the Services Agreement as of the Effective Date by and between WatchGuard and the Agency, WatchGuard shall provide and deliver the Initial Services and Deliverables set forth below.

Provided Services:

WatchGuard Video will provide to the Agency Name services resulting in the successful and satisfactory installation and configuration of the WatchGuard Video 4RE High Definition In-Car Video System with Integrated VISTA Wi-Fi and Evidence Library software. Table 1 lists the work required to complete a successful installation. The "Appendix A Reference Number" column represents the line item in which each party is responsible. If an "X" is listed under the "WGV" column then WatchGuard Video is responsible for that particular task. If an "X" is listed under the "Agency" column, then the Agency is responsible for that particular task. Detail descriptions of each major section (indicated by Bold Text) are included in Appendix A which is incorporated by reference.

Table 1. Work Breakdown Structure

Appendix A Reference Number	WGV	Agency	Short Description (See Appendix A for details on each item)
SVR-01		X	Installation of server in Equipment Rack
SVR-02		X	Provide a suitable Rack
SVR-03		X	Mounting or Racking the Server
SVR-04		X	Connecting the server (Power (connector), KVM, Network Cabling and switches, JBOD, UPS)
SVR-05		X	Provide a physical or Virtual Server that meets the specified Server Requirements
SVR-06		X	Installation and configuration of Windows Operating System and disk storage systems
SVR-07		X	Provide Operating System License
SVR-08		X	Install and configure Operating System (Includes current patches)
SVR-09		X	Setup and perform backups
SVR-10		X	Setup recommended disk configuration
SVR-11		X	Install and configure for remote access
SQL-01		X	Installation of Microsoft SQL Server
SQL-02		X	Provide SQL Server Licenses
SQL-03		X	Install and configure SQL Server
SQL-04		X	SQL Backup and Maintenance plan
SQL-05	N/A	N/A	Setup SQL Instance (if shared database server),
EL-01	X		Installing and configuration of Evidence Library
EL-02	X		Install and configure Base Software
EL-03		X	Add Security Groups



EL-04	X		Configure Evidence Library
EL-05	N/A	N/A	Install and configure Upload Servers (if used)
EL-06	X		Installation of Evidence Library Clients on Agency's computers
EL-07		X	Provide client computers that meet client Hardware and Software requirements.
EL-08		X	Connect computers to Agency Network and Active Directory Domain
4RE-01	X		Configuring available 4RE DVR units
4RE-02	X		Create Configuration USB
4RE-03	X		Configure Each DVR as installs are completed
4RE-04	X		Change DVR IP configuration (if required)
4RE-05	N/A	N/A	MDC Application (if required)
4RE-06	N/A	N/A	Provide client computers that meet client Hardware and Software requirements for the MDC Application.
4RE-07	N/A	N/A	Install and configure MDC application on each computer.
4RE-08	N/A	N/A	Setup or configure in-car network for DVR to Computer connectivity which includes modifying Computer policy systems (i.e. NetMotion)
4RE-09		X	4RE System In-Car Installation
4RE-10		X	4RE Interview Room setup
4RE-11		X	4REM 4RE Motorcycle System Installation
VISTA-01	X		Configuring available VISTA WiFi cameras
VISTA-02	X		Create Configuration
VISTA-03	X		Configure Each VISTA camera
VISTA-04		X	Install/Configure Smart PoE Switch in Vehicle (if applicable)
VISTA-05	X		Install Transfer Station (if applicable)
VISTA-06	X		Install Vista USB docks
TEST-01	X		Finish Testing Function of WatchGuard system
TEST-02	X		Complete Test checklist
TRAIN-01	X		Training
TRAIN-02	X		4RE DVR Installation Training
TRAIN-03	X		4RE and VISTA WiFi End User Training (Officers)
TRAIN-05	X		Evidence Library User Training (Officers/Supervisors)
TRAIN-06	X		Evidence Library Administrative Training
Close-01	X	X	Project Sign-Off



SCHEDULE 2

HARDWARE WARRANTY

(SEE ATTACHED)



LIMITED IN-CAR HARDWARE WARRANTY

WatchGuard, Inc., in recognition of its responsibility to provide quality systems, components, and workmanship, warrants each system, part, and component it manufactures first sold to an end user to be free from defects in material and workmanship for a period of **ONE-YEAR** from the date of purchase. A defective component that is repaired or replaced under this limited warranty will be covered for the remainder of the original warranty period. Where defects in material or workmanship may occur, the following warranty terms and conditions apply:

WARRANTOR – This warranty is granted by WatchGuard, Inc., 415 Century Parkway, Allen, TX 75013, Telephone: 972-423-9777, Facsimile: 972-423-9778.

PARTIES TO WHOM WARRANTY IS INTENDED – This warranty extends to the original end user of the equipment only and is not transferable. Any exceptions must be approved in writing from WatchGuard.

PARTS AND COMPONENTS COVERED – All parts and components and repair labor of the warranted unit manufactured and/or installed by WatchGuard are covered by this warranty, except those parts and components excluded below.

PARTS AND COMPONENTS NOT COVERED – The Limited Warranty excludes normal wear-and-tear items such as frayed or broken cords, broken connectors, and scratched or broken displays. WatchGuard reserves the right to charge for damages resulting from abuse, improper installation, or extraordinary environmental damage (including damages caused by spilled liquids) to the unit during the warranty period at rates normally charged for repairing such units not covered under the Limited Warranty. In cases where potential charges would be incurred due to said damages, the agency submitting the system for repairs will be notified. Altered, damaged, or removed serial numbers results in voiding this Limited Warranty. If while under the warranty period, it is determined that the WatchGuard system was internally changed, modified, or repair attempted, the system warranty will become null and void.

LIMITED LIABILITY – WatchGuard's liability is limited to the repair or replacement of components found to be defective by WatchGuard. WatchGuard will not be liable for any direct, indirect, consequential, or incidental damages arising out of the use of or inability to use the system even if the unit proved to be defective. WatchGuard will not be responsible for any removal or re-installation cost of the unit or for damages caused by improper installation.

REMEDY – If, within the duration of this warranty, a unit or component covered by this warranty is determined by WatchGuard to be defective in material or workmanship, WatchGuard shall replace any defective components. Replacement of a defective component(s) pursuant to this warranty shall be warranted for the remainder of the warranty period applicable to the system warranty period. WatchGuard will advance ship a replacement unit, or at the request of the customer, ask for the unit to



be sent in for repair. In the case of an advanced shipment replacement, WatchGuard will supply a return label with the advance unit, and the customer must return the defect within thirty days.

SHIPPING – When an advanced replacement is sent out, the unit will ship via ground shipping, and WatchGuard will provide a prepaid shipping label to return any defective unit for end users in the continental United States. A serial number is required to be submitted with the request in order to receive an advanced replacement unit. The customer will need to contact WatchGuard's Customer Service Department to request a return material authorization (RMA) number. Failure to return the unit within the thirty-day window will result in the customer being billed the full purchase price of the advance shipped unit.

If the customer requests the unit be sent in for repair, the end user will be responsible for any shipping charges to WatchGuard. WatchGuard will return ship the product to a customer within the continental United States by prepaid ground shipping only. Any expedited shipping costs are the responsibility of the end user.

Customers that are outside the continental United States will be responsible for all transportation costs both to and from WatchGuard's factory for warranty service, including without limitation to any export or import fees, duties, tariffs, or any other related fees that may be incurred during transportation. You may also obtain warranty service by contacting your local WatchGuard Authorized Service Center (ASC) for shipping instructions. A list of local ASCs may be obtained by contacting WatchGuard's Customer Service Department. Customers will be responsible for all transportation costs to and from the local ASC for warranty service.

EXTENDED WARRANTY – Extended Warranties may be purchased directly from WatchGuard. Any and all extended warranties must be purchased prior to the expiration of any previous warranty. Failure to purchase an extended warranty prior to the expiration of the warranty period will require the covered unit to be physically inspected at the facility of the manufacturer and any repairs necessary to bring the unit back to full working order must be performed prior to the issuance of any new warranty. The customer will be responsible for the cost of the inspection (equal to 1 hour of labor) plus the standard costs associated with any required repairs. Should you have any further questions regarding the WatchGuard limited warranty, please direct them to:

WatchGuard, Inc.

Attn: Customer Service Department
415 Century Parkway
Allen, Texas 75013
(800) 605-6734 Toll Free Main Phone
(972) 423-9777 Main
(972) 423-9778 Fax
www.watchguardvideo.com
support@watchguardvideo.com



LIMITED WEARABLE CAMERA HARDWARE WARRANTY

WatchGuard, Inc., in recognition of its responsibility to provide quality systems, components, and workmanship, warrants each system, part, and component it manufactures first sold to an end user to be free from defects in material and workmanship for a period of **ONE-YEAR** from the date of purchase. A defective component that is repaired or replaced under this limited warranty will be covered for the remainder of the original warranty period. Where defects in material or workmanship may occur, the following warranty terms and conditions apply:

WARRANTOR – This warranty is granted by WatchGuard, Inc., 415 Century Parkway, Allen, TX 75013, Telephone: 972-423-9777, Facsimile: 972-423-9778.

PARTIES TO WHOM WARRANTY IS INTENDED – This warranty extends to the original end user of the equipment only and is not transferable. Any exceptions must be approved in writing from WatchGuard.

PARTS AND COMPONENTS COVERED – All parts and components, including consumable items such as batteries, and repair labor of the warranted unit manufactured and/or installed by WatchGuard are covered by this warranty, except those parts and components excluded below.

PARTS AND COMPONENTS NOT COVERED – The Limited Warranty excludes camera mounts and normal wear-and-tear items such as frayed or broken cords and scratched or broken displays. WatchGuard reserves the right to charge for damages resulting from abuse, improper use, or extraordinary environmental damage (such as submersion in liquid) to the unit during the warranty period at rates normally charged for repairing such units not covered under the Limited Warranty. In cases where potential charges would be incurred due to said damages, the agency submitting the system for repairs will be notified. Altered, damaged, or removed serial numbers results in voiding this Limited Warranty. If while under the warranty period, it is determined that the WatchGuard system was internally changed, modified, or repair attempted, the system warranty will become null and void.

LIMITED LIABILITY – WatchGuard's liability is limited to the repair or replacement of components found to be defective by WatchGuard. WatchGuard will not be liable for any direct, indirect, consequential, or incidental damages arising out of the use of or inability to use the system even if the unit proved to be defective.

REMEDY – If, within the duration of this warranty, a unit or component covered by this warranty is diagnosed by WatchGuard's Customer Service phone support and proves to be defective in material or workmanship, WatchGuard shall replace the defective unit with an Advance Replacement unit. The Advance Replacement unit will ship via UPS ground and include a prepaid shipping label to return the defective unit, which must be received by WatchGuard within thirty days. The Advance Replacement unit pursuant to this warranty shall be warranted for the remainder of the warranty period.



SHIPPING – When an advanced replacement is sent out, the unit will ship via ground shipping, and WatchGuard will provide a prepaid shipping label to return any defective unit for end users in the continental United States. A serial number is required to be submitted with the request in order to receive an advanced replacement unit. The customer will need to contact WatchGuard's Customer Service Department to request a return material authorization (RMA) number. Failure to return the unit within the thirty day window will result in the customer being billed the full purchase price of the advance shipped unit.

If the customer requests the unit be sent in for repair, the end user will be responsible for any shipping charges to WatchGuard. WatchGuard will return ship the product to a customer within the continental United States by prepaid ground shipping only. Any expedited shipping costs are the responsibility of the end user.

Customers that are outside the continental United States will be responsible for all transportation costs both to and from WatchGuard's factory for warranty service, including without limitation to any export or import fees, duties, tariffs, or any other related fees that may be incurred during transportation. You may also obtain warranty service by contacting your local WatchGuard Authorized Service Center (ASC) for shipping instructions. A list of local ASCs may be obtained by contacting WatchGuard's Customer Service Department. Customers will be responsible for all transportation costs to and from the local ASC for warranty service.

EXTENDED WARRANTY – A 3 Year Extended "No-Fault" Warranty may be purchased directly from WatchGuard. Any and all extended warranties must be purchased prior to the expiration of any previous warranty. Failure to purchase an extended warranty prior to the expiration of the warranty period will require the covered unit to be physically inspected at the facility of the manufacturer and any repairs necessary to bring the unit back to full working order must be performed prior to the issuance of any new warranty. The customer will be responsible for the cost of the inspection (equal to 1 hour of labor) plus the standard costs associated with any required repairs. Should you have any further questions regarding the WatchGuard limited warranty, please direct them to:

WatchGuard, Inc.

Attn: Customer Service Department

415 Century Parkway

Allen, Texas 75013

(800) 605-6734 Toll Free Main Phone

(972) 423-9777 Main

(972) 423-9778 Fax

www.watchguardvideo.com

support@watchguardvideo.com



VISTA NO-FAULT 3 YEAR EXTENDED HARDWARE WARRANTY

WatchGuard, Inc., in recognition of the high demands placed on all equipment worn, and used by Police Officers is offering the following No-Fault Warranty option. WatchGuard warrants each system, part, and component it manufactures first sold to an end user to be free from defects in material and workmanship for a period of **ONE-YEAR** from the date of purchase in its standard Limited Warranty.

The No-Fault 3 Year Extended Warranty may be purchased directly from WatchGuard. Any and all No-Fault warranties must be purchased with the initial purchase of the VISTA unit, and the VISTA No-Fault warranty must also be purchased for all VISTA units. Failure to purchase the No-Fault warranty at the time of purchase will require the covered unit to be physically inspected at the facility of the manufacturer and any repairs necessary to bring the unit back to full working order must be performed prior to the issuance of any new warranty. The customer will be responsible for the cost of the inspection (equal to 1 hour of labor) plus the standard costs associated with any required repairs. The following warranty terms and conditions apply with the purchase of the No-Fault VISTA Camera Warranty:

WARRANTOR – This warranty is granted by WatchGuard, Inc., 415 Century Parkway, Allen, TX 75013, Telephone: 972-423-9777, Facsimile: 972-423-9778.

PARTIES TO WHOM WARRANTY IS INTENDED – This warranty extends to the original end user of the equipment only and is not transferable. Any exceptions must be approved in writing from WatchGuard.

PARTS AND COMPONENTS COVERED – The VISTA No-Fault warranty covers all parts and components of the VISTA Standard, and the VISTA Extended Capacity Body Worn Cameras. This also includes the base, cables, and battery replacements during the life of the extended warranty. Repair labor of the warranted unit manufactured and/or installed by WatchGuard are covered by this warranty, except those parts and components excluded below.

PARTS AND COMPONENTS NOT COVERED – The No-Fault Warranty will not include systems with intentionally altered or removed serial numbers, or it is determined that the WatchGuard system was internally changed, modified, or repaired.

LIMITED LIABILITY – WatchGuard's liability is limited to the repair or replacement of components. WatchGuard will not be liable for any direct, indirect, consequential, or incidental damages arising out of the use of or inability to use the system even if the unit proved to be defective.



REMEDY – If, within the duration of this warranty, a unit or component covered by this warranty is damaged in any way, WatchGuard shall replace the unit with an Advance Replacement unit. The Advance Replacement unit will ship via UPS ground and include a prepaid shipping label to return the defective or damaged unit. WatchGuard requires that any and all parts and pieces of the damage unit be returned. By contacting WatchGuard to send in a unit in for repair or replacement under the No-Fault Warranty, the customer agrees to return the damaged unit within 30 days. Failure to return the unit will result in the customer being billed the full purchase price for the new advance shipped unit. The Advance Replacement unit pursuant to this warranty shall be warranted for the remainder of the warranty period.

SHIPPING –Throughout the duration of the warranty period, WatchGuard will provide an Advance Replacement unit with a prepaid shipping label to return any defective unit for end users in the continental United States provided serial numbers are submitted during the Customer Service diagnostic process. In such event, contact WatchGuard's Customer Service Department for troubleshooting and to start the diagnostic process. Any expedited shipping costs are the responsibility of the end user. Customers that are outside the continental United States will be responsible for all transportation costs both to and from WatchGuard Video's factory for warranty service, including without limitation to any export or import fees, duties, tariffs, or any other related fees that may be incurred during transportation.

You may also obtain warranty service by contacting your local WatchGuard Authorized Service Center (ASC) for shipping instructions. A list of local ASCs may be obtained by contacting WatchGuard's Customer Service Department. Customers will be responsible for all transportation costs to and from the local ASC for warranty service.

Should you have any further questions regarding the WatchGuard Video No-Fault warranty, please direct them to:

WatchGuard, Inc.

Attn: Customer Service Department

415 Century Parkway

Allen, Texas 75013

(800) 605-6734 Toll Free Main Phone

(866) 384-8567 Toll Free Queued Customer Service

(972) 423-9777 Main

(972) 423-9778 Fax

www.watchguardvideo.com

support@watchguardvideo.com



SCHEDULE 3

SOFTWARE MAINTENANCE PLAN

(SEE ATTACHED)



EVIDENCE LIBRARY SOFTWARE MAINTENANCE PLAN

TERMS AND CONDITIONS

Your WatchGuard Software Maintenance Plan for Evidence Library (herein referred to as the "Software Maintenance Plan") is governed by these Terms and Conditions and constitutes your contract with WatchGuard, Inc. as described below. Subject to these Terms and Conditions,

- (i) The Software Maintenance Plan applies to all customers who signed up for an active plan with WatchGuard after July 1, 2015.
- (ii) The Evidence Library Software ("Covered Software") first sold to an end user is guaranteed to be free defects in material and workmanship for the duration of the coverage period.
- (iii) The Software Maintenance Plan provides you with access to telephone technical support and web-based support resources for the Covered Software.
- (iv) The Software Maintenance Plan provides you with access to software service packs, minor software updates, major software upgrades, and 4RE/VISTA Firmware updates.
- (v) The Software Maintenance Plan includes the "Basic" level of CLOUD-SHARE.

The Software Maintenance Plan can be extended beyond the first year, provided payment for the annual Software Maintenance Plan for each year is made to WatchGuard prior to the end of the Coverage Period. The Software Maintenance Plan must be carried consecutively without any lapses in yearly coverage across all purchased 4RE In-Car, and VISTA units. WatchGuard will track the serial numbers of each unit and associate coverage with the Software Maintenance Plan respectively. All 4RE In-Car, VISTA and IT related hardware is excluded under the Software Maintenance Plan.

The duration of the Software Maintenance Plan ("Coverage Period") is for the period specified by any and all paid invoices related to the purchases of Software Maintenance Plans. WatchGuard may restrict service provided under this Software Maintenance Plan to the Covered Software's original country of purchase.

All Software Maintenance plans will have a "Common" expiration date that will be determined by the expiration of the original Software Maintenance from the initial purchase invoice. The common expiration date will be the same for all units. Any additional units purchased after the initial invoice, will not have Software Maintenance extended past the common expiration date unless additional years of Software Maintenance are purchased. All units must be extended at the same time and then the new expiration date will become the common expiration date for all current and future units purchased.



SERVICE OPTIONS:

Remote Service which includes call center, on-line chat, email, will call, and remote desktop service, is provided free of charge for the Coverage Period. In instances where remote desktop capability is accessible, WatchGuard will make every reasonable effort to provide a solution remotely.

On-Site Technical Service must be scheduled in advance and is available at a minimum daily rate. Contact WatchGuard for further information regarding rates and availability.

TECHNICAL SUPPORT

TELEPHONE AND WEB SUPPORT

During the Coverage Period WatchGuard will provide you with access to telephone technical support and web-based technical support resources. Technical support may include the launch, configuration, troubleshooting, and recovery, interpreting system error messages, and determining when hardware repairs are required. WatchGuard will provide technical support for the Covered Software including software applications that are installed by WatchGuard or an Authorized Service Center. WatchGuard will provide support for the then-current version of the software.

SUPPORT LIMITATIONS

The Software Maintenance Plan does not cover:

- (i) Issues that could be resolved by upgrading the software to the then-current version.
- (ii) Your use of or modification to the Covered Software in a manner for which the Covered Software is not intended to be used or modified.
- (iii) Third-party products or their effects on or interactions with the Covered Software.
- (iv) Does not cover the services or time related to the installation of the software, training, or software upgrades.
- (v) Your use of a computer or operating system that is unrelated to Covered Software.
- (vi) Connectivity issues with the Covered Software over networks not built or supported by WatchGuard.
- (vii) Covered Software that has been deleted or uninstalled.
- (viii) Preventative maintenance on the Covered Software.
- (ix) Damage to, or loss of, any software or data residing or recorded on the same computer as the Covered Software. The contents of the hard drive may be deleted in the course of service. WatchGuard may install system software updates as part of your service that will prevent the software from reverting to an earlier version. Reinstallation of software programs and user data are not covered under this Plan.



- (x) Hardware Warranty coverage includes, but is not limited to, servers, computers, DVD burners, JBOD online storage devices, uninterruptable power supplies, building mounted antennas, and all related brackets and mounting hardware ("IT Equipment").
- (xi) On-Site technical service.
- (xii) Problems caused by the function of a network or viruses or other software problems introduced into the Covered Software or computer the Covered Software is running on.
- (xiii) Except as specifically provided herein, any other damages that do not arise from defects in materials and workmanship or ordinary and customary usage of the Covered Software.

Any Incident deemed out of scope as defined in this Software Maintenance Plan or any incident that occurs while no Software Maintenance Plan Agreement is in place, shall be subject to additional fees and/or charges. The Customer will be quoted applicable charges and rates prior to any service(s) being performed. Approved service(s) will commence upon receipt of a purchase order.

OBTAINING TECHNICAL SUPPORT

You may obtain technical support by calling (800) 605-6734. The Customer Service Representative will provide you technical support.

YOUR RESPONSIBILITY

To receive service or support under the Plan, you agree to comply with the following:

- (i) Provide your agency name and serial number (if required) of the Covered Software.
- (ii) Provide information about the symptoms and causes of the problems with the Covered Software.
- (iii) Respond to requests for information, including but not limited to the associated serial number of Covered Software, version, model, IT hardware, and software including operating system and database software, third-party software installed, any peripherals devices connected or installed with the Covered Software, any error messages displayed, actions taken before the Covered Software experienced the issue and steps taken to resolve the issue.
- (iv) You shall maintain all IT Equipment related to or required by the Covered Software. Any incident arising from inadequate maintenance of these systems shall be subject to additional per incident charges
- (v) Any changes to the hardware or software environment for both the Covered Software and IT Equipment made by Customer that results in any degradation in performance will be the responsibility of you including any related costs to correct the issue. Changes include, but are not limited to, in-car installation resulting in a non-approved



installation, damaged or misalignment of wireless antennas caused by the customer or weather, untrimmed trees or added obstacles that degrade wireless signal strength, added vehicles without regard for adding additional wireless access points that results in degraded performance, adding or changing video storage locations in an improper manner, adding or updating server software without the approval of WatchGuard, changes to the 4RE related network topology or architecture without consultation of WatchGuard.

GENERAL TERMS

- (i) WatchGuard may subcontract or assign performance of its obligations to third-parties but will not be relieved of its obligations to you in doing so.
- (ii) WatchGuard is not responsible for any failures or delays in performing under the Plan that are due to events outside WatchGuard's reasonable control.
- (iii) This Plan is offered and valid only in the United States of America. This Plan may not be available in all states, and is not available where prohibited by law.
- (iv) In carrying out its obligations WatchGuard may, at its discretion and solely for the purposes of monitoring the quality of WatchGuard's response, record part or all of the calls between you and WatchGuard.
- (v) WatchGuard is not obligated to renew the Software Maintenance Plan after termination. If a new Software Maintenance Plan is offered, WatchGuard will determine the price and terms.

LIMITATION OF LIABILITY

EXCEPT FOR THE LIMITED WARRANTIES AND REMEDIES CONTAINED HEREIN, THIS PRODUCT IS PROVIDED ON AN "AS IS" BASIS, WITHOUT ANY OTHER WARRANTIES OR CONDITIONS, EXPRESSED OR IMPLIED, INCLUDING BUT NOT LIMITED TO, WARRANTIES OF MERCHANTABILITY, MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THOSE ARISING BY LAW, STATUTE, USAGE OF TRADE, OR COURSE OF DEALING.

NEITHER WATCHGUARD NOR ITS DEALERS OR SUPPLIERS WILL HAVE ANY LIABILITY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES WHATSOEVER, INCLUDING BUT NOT LIMITED TO, LOSS OF REVENUE OR PROFIT, WHETHER RESULTING FROM THE USE, MISUSE OR INABILITY TO USE THIS PRODUCT OR FROM DEFECTS IN THE PRODUCT, EVEN IF WATCHGUARD HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, OR THEY ARE FORESEEABLE. WATCHGUARD IS ALSO NOT RESPONSIBLE FOR CLAIMS BY A THIRD PARTY. WATCHGUARD'S MAXIMUM AGGREGATE LIABILITY TO YOU, AND THAT OF ITS DEALERS AND SUPPLIERS, SHALL NOT EXCEED THE AMOUNT PAID BY YOU FOR THIS PRODUCT AS EVIDENCED BY YOUR PURCHASE RECEIPT.



This limited warranty gives you specific legal rights. You may also have other rights that may vary from state to state or from country to country. You are advised to consult applicable state or country laws for a full determination of your rights.

SUPPORT CONTACT INFORMATION

WatchGuard, Inc.

Attn: Customer Service Department
415 Century Parkway
Allen, Texas 75013
(800) 605-6734 Toll Free Main Phone
(972) 423-9777 Main
(972) 423-9778 Fax
www.watchguardvideo.com
support@watchguardvideo.com



EVIDENCE LIBRARY END USER LICENSE AGREEMENT

CAREFULLY READ THE FOLLOWING LICENSE AGREEMENT. BY OPENING THE PACKAGE OR CLICKING ON THE "ACCEPT" BUTTON, YOU ARE CONSENTING TO BE BOUND BY AND ARE BECOMING A PARTY TO THIS AGREEMENT. IF YOU DO NOT AGREE TO ALL OF THE TERMS OF THIS AGREEMENT, CLICK THE "DO NOT ACCEPT" BUTTON, AND, IF APPLICABLE, RETURN THIS PRODUCT TO THE PLACE OF PURCHASE FOR A FULL REFUND.

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The package contains software ("Software") and related explanatory written materials ("Documentation"). "Software" includes any upgrades, modified versions, updates, additions and copies of the Software. "You" means the person or company who is being licensed to use the Software or Documentation. "We" and "us" means WatchGuard, Inc.

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- Copy the Documentation;



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- Modify or adapt the Software or merge it into another program;
- Reverse engineer, disassemble, decompile or make any attempt to discover the source code of the Software;
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- Sublicense, rent, lease or lend any portion of the Software or Documentation.

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You may transfer all your rights to use the Software and Documentation to another person or legal entity provided you transfer this Agreement, the Software and Documentation, including all copies, updates and prior versions to such person or entity and that you retain no copies, including copies stored on computer.

LIMITED WARRANTY

We warrant that for a period of ninety days after delivery of this copy of the Software to you:

- The physical media on which this copy of the Software is distributed will be free from defects in materials and workmanship under normal use; and
- The Software will perform in substantial accordance with the Documentation.

To the extent permitted by applicable law, THE FOREGOING LIMITED WARRANTY IS IN LIEU OF ALL OTHER WARRANTIES OR CONDITIONS, EXPRESS OR IMPLIED, AND WE DISCLAIM ANY AND ALL IMPLIED WARRANTIES OR CONDITIONS, INCLUDING ANY IMPLIED WARRANTY OF TITLE, NONINFRINGEMENT, MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, regardless of whether we know or had reason to know of your particular needs. No employee, agent, dealer or distributor of ours is authorized to modify this limited warranty, nor to make any additional warranties.

SOME STATES DO NOT ALLOW THE EXCLUSION OF IMPLIED WARRANTIES, SO THE ABOVE EXCLUSION MAY NOT APPLY TO YOU. THIS WARRANTY GIVES YOU SPECIFIC LEGAL RIGHTS, AND YOU MAY ALSO HAVE OTHER RIGHTS WHICH VARY FROM STATE TO STATE.

LIMITED REMEDY

Our entire liability and your exclusive remedy shall be:

- The replacement of any diskette(s) or other media not meeting our Limited Warranty which is returned to us or to an authorized Dealer or Distributor with a copy of your receipt; or



- If we or an authorized Dealer or Distributor are unable to deliver a replacement diskette(s) or other media that is free of defects in materials or workmanship, you may terminate this

Agreement by returning the Software and Documentation and your money will be refunded.

IN NO EVENT WILL WE BE LIABLE TO YOU FOR ANY DAMAGES, INCLUDING ANY LOST PROFITS, LOST SAVINGS, OR OTHER INCIDENTAL OR CONSEQUENTIAL DAMAGES ARISING FROM THE USE OF OR THE INABILITY TO USE THE SOFTWARE (EVEN IF WE OR AN AUTHORIZED DEALER OR DISTRIBUTOR HAS BEEN ADVISED OF THE POSSIBILITY OF THESE DAMAGES), OR FOR ANY CLAIM BY ANY OTHER PARTY.

SOME STATES DO NOT ALLOW THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATION MAY NOT APPLY TO YOU.

TERM AND TERMINATION

This license agreement takes effect upon your use of the Software and remains effective until terminated. You may terminate it at any time by destroying all copies of the Software and Documentation in your possession. It will also automatically terminate if you fail to comply with any term or condition of this license agreement. You agree on termination of this license to either return to us or destroy all copies of the Software and Documentation in your possession.

CONFIDENTIALITY

The Software contains trade secrets and proprietary know-how that belong to us and it is being made available to you in strict confidence. ANY USE OR DISCLOSURE OF THE SOFTWARE, OR OF ITS ALGORITHMS, PROTOCOLS OR INTERFACES, OTHER THAN IN STRICT ACCORDANCE WITH THIS LICENSE AGREEMENT, MAY BE ACTIONABLE AS A VIOLATION OF OUR TRADE SECRET RIGHTS.

GENERAL PROVISIONS

1. This written license agreement is the exclusive agreement between you and us concerning the Software and Documentation and supersedes any and all prior oral or written agreements, negotiations or other dealings between us concerning the Software.
2. This license agreement may be modified only by a writing signed by you and us.
3. In the event of litigation between you and us concerning the Software or Documentation, the prevailing party in the litigation will be entitled to recover attorney fees and expenses from the other party.
4. This license agreement is governed by the laws of the State of Texas.
5. You agree that the Software will not be shipped, transferred or exported into any country or used in any manner prohibited by the United States Export Administration Act or any other export laws, restrictions or regulations.



SCHEDULE 4

EXTENDED HARDWARE WARRANTY /

SOFTWARE MAINTENANCE PLAN

(SEE ATTACHED)



SCHEDULE 4

VISTA NO-FAULT HARDWARE WARRANTY and EVIDENCE LIBRARY MAINTENANCE PLAN- 3 YEAR EXTENDED PLAN

WatchGuard, Inc., in recognition of the high demands placed on all equipment worn, and used by Police Officers is offering the following No-Fault Warranty option. WatchGuard warrants each system, part, and component it manufactures first sold to an end user to be free from defects in material and workmanship for a period of **ONE-YEAR** from the date of purchase in its standard Limited Warranty.

The No-Fault 3 Year Extended Hardware Warranty /Evidence Library Software Maintenance plan may be purchased directly from WatchGuard. Any and all No-Fault warranties must be purchased with the initial purchase of the VISTA unit, and the VISTA No-Fault warranty must also be purchased for all VISTA units. Failure to purchase the No-Fault warranty at the time of purchase will require the covered unit to be physically inspected at the facility of the manufacturer and any repairs necessary to bring the unit back to full working order must be performed prior to the issuance of any new warranty. The customer will be responsible for the cost of the inspection (equal to 1 hour of labor) plus the standard costs associated with any required repairs. The following warranty terms and conditions apply with the purchase of the No-Fault VISTA Camera Warranty:

WARRANTOR – This warranty is granted by WatchGuard, Inc., 415 E. Exchange, Allen, TX 75002, Telephone: 972-423-9777, Facsimile: 972-423-9778.

PARTIES TO WHOM WARRANTY IS INTENDED – This warranty extends to the original end user of the equipment only and is not transferable. Any exceptions must be approved in writing from WatchGuard.

PARTS AND COMPONENTS COVERED – The VISTA No-Fault warranty covers all parts and components of the VISTA Standard, and the VISTA Extended Capacity Body Worn Cameras. This also includes the base, cables, and battery replacements during the life of the extended warranty. Repair labor of the warranted unit manufactured and/or installed by WatchGuard are covered by this warranty, except those parts and components excluded below.

PARTS AND COMPONENTS NOT COVERED – The No-Fault Warranty will not include systems with intentionally altered or removed serial numbers, or it is determined that the WatchGuard system was internally changed, modified, or repaired.

LIMITED LIABILITY – WatchGuard's liability is limited to the repair or replacement of components. WatchGuard will not be liable for any direct, indirect, consequential, or incidental damages arising out of the use of or inability to use the system even if the unit proved to be defective.



REMEDY – If, within the duration of this warranty, a unit or component covered by this warranty is damaged in any way, WatchGuard shall replace the unit with an Advance Replacement unit. The Advance Replacement unit will ship via UPS ground and include a prepaid shipping label to return the defective or damaged unit. WatchGuard requires that any and all parts and pieces of the damage unit be returned. By contacting WatchGuard to send in a unit in for repair or replacement under the No-Fault Warranty, the customer agrees to return the damaged unit within 30 days. Failure to return the unit will result in the customer being billed the full purchase price for the new advance shipped unit. The Advance Replacement unit pursuant to this warranty shall be warranted for the remainder of the warranty period.

SHIPPING –Throughout the duration of the warranty period, WatchGuard will provide an Advance Replacement unit with a prepaid shipping label to return any defective unit for end users in the continental United States provided serial numbers are submitted during the Customer Service diagnostic process. In such event, contact WatchGuard's Customer Service Department for troubleshooting and to start the diagnostic process. Any expedited shipping costs are the responsibility of the end user. Customers that are outside the continental United States will be responsible for all transportation costs both to and from WatchGuard Video's factory for warranty service, including without limitation to any export or import fees, duties, tariffs, or any other related fees that may be incurred during transportation.

You may also obtain warranty service by contacting your local WatchGuard Authorized Service Center (ASC) for shipping instructions. A list of local ASCs may be obtained by contacting WatchGuard's Customer Service Department. Customers will be responsible for all transportation costs to and from the local ASC for warranty service.

3 YEAR EVIDENCE LIBRARY SOFTWARE MAINTENANCE PLAN

TERMS AND CONDITIONS

Your WatchGuard Software Maintenance Plan for Evidence Library (herein referred to as the "Software Maintenance Plan") is governed by these Terms and Conditions and constitutes your contract with WatchGuard, Inc. as described below. Subject to these Terms and Conditions,

- (i) The Software Maintenance Plan applies to all customers who signed up for an active plan with WatchGuard after July 1, 2015.
- (ii) The Evidence Library Software ("Covered Software") first sold to an end user is guaranteed to be free defects in material and workmanship for the duration of the coverage period.
- (iii) The Software Maintenance Plan provides you with access to telephone technical support and web-based support resources for the Covered Software.



- (iv) The Software Maintenance Plan provides you with access to software service packs, minor software updates, major software upgrades, and 4RE/VISTA Firmware updates.
- (v) The Software Maintenance Plan includes the "Basic" level of CLOUD-SHARE.

The duration of the Software Maintenance Plan ("Coverage Period") is for the period specified by any and all paid invoices related to the purchases of Software Maintenance Plans. WatchGuard may restrict service provided under this Software Maintenance Plan to the Covered Software's original country of purchase.

The Software Maintenance Plan has been extended to three years with the purchase of this 3 Year No-Fault Hardware Warranty and Evidence Library Maintenance Plan Bundle. WatchGuard will track the serial numbers of each unit and associate coverage with the Software Maintenance Plan respectively. All 4RE In-Car, VISTA and IT related hardware is excluded under the Software Maintenance Plan.

All Software Maintenance plans will have a "Common" expiration date that will be determined by the expiration of the original Software Maintenance from the initial purchase invoice. The common expiration date (in 3 years) will be the same for all units. Any additional units purchased after the initial invoice, will not have Software Maintenance extended past the common expiration date unless additional years of Software Maintenance are purchased. All units must be extended at the same time and then the new expiration date will become the common expiration date for all current and future units purchased.

SERVICE OPTIONS:

Remote Service which includes call center, on-line chat, email, will call, and remote desktop service, is provided free of charge for the Coverage Period. In instances where remote desktop capability is accessible, WatchGuard will make every reasonable effort to provide a solution remotely.

On-Site Technical Service must be scheduled in advance and is available at a minimum daily rate. Contact WatchGuard for further information regarding rates and availability.

TECHNICAL SUPPORT

TELEPHONE AND WEB SUPPORT

During the Coverage Period WatchGuard will provide you with access to telephone technical support and web-based technical support resources. Technical support may include the launch, configuration, troubleshooting, and recovery, interpreting system error messages, and determining when hardware repairs are required. WatchGuard will provide technical support for the Covered Software including software applications that are installed by WatchGuard or an Authorized Service Center. WatchGuard will provide support for the then-current version of the software.



SUPPORT LIMITATIONS

The Software Maintenance Plan does not cover:

- (i) Issues that could be resolved by upgrading the software to the then-current version.
- (ii) Your use of or modification to the Covered Software in a manner for which the Covered Software is not intended to be used or modified.
- (iii) Third-party products or their effects on or interactions with the Covered Software.
- (iv) Does not cover the services or time related to the installation of the software, training, or software upgrades.
- (v) Your use of a computer or operating system that is unrelated to Covered Software.
- (vi) Connectivity issues with the Covered Software over networks not built or supported by WatchGuard.
- (vii) Covered Software that has been deleted or uninstalled.
- (viii) Preventative maintenance on the Covered Software.
- (ix) Damage to, or loss of, any software or data residing or recorded on the same computer as the Covered Software. The contents of the hard drive may be deleted in the course of service. WatchGuard may install system software updates as part of your service that will prevent the software from reverting to an earlier version. Reinstallation of software programs and user data are not covered under this Plan.
- (x) Hardware Warranty coverage includes, but is not limited to, servers, computers, DVD burners, JBOD online storage devices, uninterruptable power supplies, building mounted antennas, and all related brackets and mounting hardware ("IT Equipment").
- (xi) On-Site technical service.
- (xii) Problems caused by the function of a network or viruses or other software problems introduced into the Covered Software or computer the Covered Software is running on.
- (xiii) Except as specifically provided herein, any other damages that do not arise from defects in materials and workmanship or ordinary and customary usage of the Covered Software.

Any Incident deemed out of scope as defined in this Software Maintenance Plan or any incident that occurs while no Software Maintenance Plan Agreement is in place, shall be subject to additional fees and/or charges. The Customer will be quoted applicable charges and rates prior to any service(s) being performed. Approved service(s) will commence upon receipt of a purchase order.



OBTAINING TECHNICAL SUPPORT

You may obtain technical support by calling (800) 605-6734. The Customer Service Representative will provide you technical support.

YOUR RESPONSIBILITY

To receive service or support under the Plan, you agree to comply with the following:

- (i) Provide your agency name and serial number (if required) of the Covered Software.
- (ii) Provide information about the symptoms and causes of the problems with the Covered Software.
- (iii) Respond to requests for information, including but not limited to the associated serial number of Covered Software, version, model, IT hardware, and software including operating system and database software, third-party software installed, any peripherals devices connected or installed with the Covered Software, any error messages displayed, actions taken before the Covered Software experienced the issue and steps taken to resolve the issue.
- (iv) You shall maintain all IT Equipment related to or required by the Covered Software. Any incident arising from inadequate maintenance of these systems shall be subject to additional per incident charges
- (v) Any changes to the hardware or software environment for both the Covered Software and IT Equipment made by Customer that results in any degradation in performance will be the responsibility of you including any related costs to correct the issue. Changes include, but are not limited to, in-car installation resulting in a non-approved installation, damaged or misalignment of wireless antennas caused by the customer or weather, untrimmed trees or added obstacles that degrade wireless signal strength, added vehicles without regard for adding additional wireless access points that results in degraded performance, adding or changing video storage locations in an improper manner, adding or updating server software without the approval of WatchGuard, changes to the 4RE related network topology or architecture without consultation of WatchGuard.

GENERAL TERMS

- (i) WatchGuard may subcontract or assign performance of its obligations to third-parties but will not be relieved of its obligations to you in doing so.
- (ii) WatchGuard is not responsible for any failures or delays in performing under the Plan that are due to events outside WatchGuard's reasonable control.



- (iii) This Plan is offered and valid only in the United States of America. This Plan may not be available in all states, and is not available where prohibited by law.
- (iv) In carrying out its obligations WatchGuard may, at its discretion and solely for the purposes of monitoring the quality of WatchGuard's response, record part or all of the calls between you and WatchGuard.
- (v) WatchGuard is not obligated to renew the Software Maintenance Plan after termination. If a new Software Maintenance Plan is offered, WatchGuard will determine the price and terms.

LIMITATION OF LIABILITY

EXCEPT FOR THE LIMITED WARRANTIES AND REMEDIES CONTAINED HEREIN, THIS PRODUCT IS PROVIDED ON AN "AS IS" BASIS, WITHOUT ANY OTHER WARRANTIES OR CONDITIONS, EXPRESSED OR IMPLIED, INCLUDING BUT NOT LIMITED TO, WARRANTIES OF MERCHANTABILITY, MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THOSE ARISING BY LAW, STATUTE, USAGE OF TRADE, OR COURSE OF DEALING.

NEITHER WATCHGUARD NOR ITS DEALERS OR SUPPLIERS WILL HAVE ANY LIABILITY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES WHATSOEVER, INCLUDING BUT NOT LIMITED TO, LOSS OF REVENUE OR PROFIT, WHETHER RESULTING FROM THE USE, MISUSE OR INABILITY TO USE THIS PRODUCT OR FROM DEFECTS IN THE PRODUCT, EVEN IF WATCHGUARD HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, OR THEY ARE FORESEEABLE. WATCHGUARD IS ALSO NOT RESPONSIBLE FOR CLAIMS BY A THIRD PARTY. WATCHGUARD'S MAXIMUM AGGREGATE LIABILITY TO YOU, AND THAT OF ITS DEALERS AND SUPPLIERS, SHALL NOT EXCEED THE AMOUNT PAID BY YOU FOR THIS PRODUCT AS EVIDENCED BY YOUR PURCHASE RECEIPT.

This limited warranty gives you specific legal rights. You may also have other rights that may vary from state to state or from country to country. You are advised to consult applicable state or country laws for a full determination of your rights.

SUPPORT CONTACT INFORMATION

WatchGuard, Inc.

Attn: Customer Service Department

415 E. Exchange

Allen, Texas 75002

(800) 605-6734 Toll Free Main Phone

(866) 384-8567 Toll Free Queued Customer Service

(972) 423-9777 Main

(972) 423-9778 Fax

www.watchguardvideo.com

support@watchguardvideo.com

VISTA No-Fault 3 Year Extended Hardware Warranty /
Software Maintenance Bundle
WGD00125 Revision A



IN-CAR HARDWARE WARRANTY and EVIDENCE LIBRARY SOFTWARE MAINTENANCE PLAN – 5 YEAR BUNDLE

5 YEAR LIMITED IN-CAR HARDWARE WARRANTY

WatchGuard, Inc., in recognition of its responsibility to provide quality systems, components, and workmanship, warrants each system, part, and component it manufactures first sold to an end user to be free from defects in material and workmanship for a period of **ONE-YEAR** from the date of purchase. A defective component that is repaired or replaced under this limited warranty will be covered for the remainder of the original warranty period. With the purchase of this 5 Year Extended Warranty, where defects in material or workmanship may occur, the following warranty terms and conditions apply:

WARRANTOR – This warranty is granted by WatchGuard, Inc., 415 Century Parkway, Allen, TX 75013, Telephone: 972-423-9777, Facsimile: 972-423-9778.

PARTIES TO WHOM WARRANTY IS INTENDED – This warranty extends to the original end user of the equipment only and is not transferable. Any exceptions must be approved in writing from WatchGuard.

PARTS AND COMPONENTS COVERED – All parts and components and repair labor of the warranted unit manufactured and/or installed by WatchGuard are covered by this warranty, except those parts and components excluded below.

PARTS AND COMPONENTS NOT COVERED – The Limited Warranty excludes normal wear-and-tear items such as frayed or broken cords, broken connectors, and scratched or broken displays. WatchGuard reserves the right to charge for damages resulting from abuse, improper installation, or extraordinary environmental damage (including damages caused by spilled liquids) to the unit during the warranty period at rates normally charged for repairing such units not covered under the Limited Warranty. In cases where potential charges would be incurred due to said damages, the agency submitting the system for repairs will be notified. Altered, damaged, or removed serial numbers results in voiding this Limited Warranty. If while under the warranty period, it is determined that the WatchGuard system was internally changed, modified, or repair attempted, the system warranty will become null and void.

LIMITED LIABILITY – WatchGuard's liability is limited to the repair or replacement of components found to be defective by WatchGuard. WatchGuard will not be liable for any direct, indirect, consequential, or incidental damages arising out of the use of or inability to use the system even if the unit proved to be defective. WatchGuard will not be responsible for any removal or re-installation cost of the unit or for damages caused by improper installation.



REMEDY – If, within the duration of this warranty, a unit or component covered by this warranty is determined by WatchGuard to be defective in material or workmanship, WatchGuard shall replace any defective components. Replacement of a defective component(s) pursuant to this warranty shall be warranted for the remainder of the warranty period applicable to the system warranty period. WatchGuard will advance ship a replacement unit, or at the request of the customer, ask for the unit to be sent in for repair. In the case of an advanced shipment replacement, WatchGuard will supply a return label with the advance unit, and the customer must return the defect within thirty days.

SHIPPING – When an advanced replacement is sent out, the unit will ship via ground shipping, and WatchGuard will provide a prepaid shipping label to return any defective unit for end users in the continental United States. A serial number is required to be submitted with the request in order to receive an advanced replacement unit. The customer will need to contact WatchGuard's Customer Service Department to request a return material authorization (RMA) number. Failure to return the unit within the thirty-day window will result in the customer being billed the full purchase price of the advance shipped unit.

If the customer requests the unit be sent in for repair, the end user will be responsible for any shipping charges to WatchGuard. WatchGuard will return ship the product to a customer within the continental United States by prepaid ground shipping only. Any expedited shipping costs are the responsibility of the end user.

Customers that are outside the continental United States will be responsible for all transportation costs both to and from WatchGuard's factory for warranty service, including without limitation to any export or import fees, duties, tariffs, or any other related fees that may be incurred during transportation. You may also obtain warranty service by contacting your local WatchGuard Authorized Service Center (ASC) for shipping instructions. A list of local ASCs may be obtained by contacting WatchGuard's Customer Service Department. Customers will be responsible for all transportation costs to and from the local ASC for warranty service.

5 YEAR EVIDENCE LIBRARY SOFTWARE MAINTENANCE PLAN

TERMS AND CONDITIONS

Your WatchGuard Software Maintenance Plan for Evidence Library (herein referred to as the "Software Maintenance Plan") is governed by these Terms and Conditions and constitutes your contract with WatchGuard, Inc. as described below. Subject to these Terms and Conditions,

- (i) The Software Maintenance Plan applies to all customers who signed up for an active plan with WatchGuard after July 1, 2015.
- (ii) The Evidence Library Software ("Covered Software") first sold to an end user is guaranteed to be free defects in material and workmanship for the duration of the coverage period.



- (iii) The Software Maintenance Plan provides you with access to telephone technical support and web-based support resources for the Covered Software.
- (iv) The Software Maintenance Plan provides you with access to software service packs, minor software updates, major software upgrades, and 4RE/VISTA Firmware updates.
- (v) The Software Maintenance Plan includes the "Basic" level of CLOUD-SHARE.

The duration of the Software Maintenance Plan ("Coverage Period") is for the period specified by any and all paid invoices related to the purchases of Software Maintenance Plans. WatchGuard may restrict service provided under this Software Maintenance Plan to the Covered Software's original country of purchase.

The Software Maintenance Plan has been extended to five years with the purchase of this 5 Year Hardware Warranty and Evidence Library Maintenance Plan Bundle. WatchGuard will track the serial numbers of each unit and associate coverage with the Software Maintenance Plan respectively. All 4RE In-Car, VISTA and IT related hardware is excluded under the Software Maintenance Plan.

All Software Maintenance plans will have a "Common" expiration date that will be determined by the expiration of the original Software Maintenance from the initial purchase invoice. The common expiration date (in 5 years) will be the same for all units. Any additional units purchased after the initial invoice, will not have Software Maintenance extended past the common expiration date unless additional years of Software Maintenance are purchased. All units must be extended at the same time and then the new expiration date will become the common expiration date for all current and future units purchased.

SERVICE OPTIONS:

Remote Service which includes call center, on-line chat, email, will call, and remote desktop service, is provided free of charge for the Coverage Period. In instances where remote desktop capability is accessible, WatchGuard will make every reasonable effort to provide a solution remotely.

On-Site Technical Service must be scheduled in advance and is available at a minimum daily rate. Contact WatchGuard for further information regarding rates and availability.

TECHNICAL SUPPORT

TELEPHONE AND WEB SUPPORT

During the Coverage Period WatchGuard will provide you with access to telephone technical support and web-based technical support resources. Technical support may include the launch, configuration, troubleshooting, and recovery, interpreting system error messages, and determining when hardware repairs are required. WatchGuard will provide technical support for the Covered Software including



software applications that are installed by WatchGuard or an Authorized Service Center. WatchGuard will provide support for the then-current version of the software.

SUPPORT LIMITATIONS

The Software Maintenance Plan does not cover:

- (i) Issues that could be resolved by upgrading the software to the then-current version.
- (ii) Your use of or modification to the Covered Software in a manner for which the Covered Software is not intended to be used or modified.
- (iii) Third-party products or their effects on or interactions with the Covered Software.
- (iv) Does not cover the services or time related to the installation of the software, training, or software upgrades.
- (v) Your use of a computer or operating system that is unrelated to Covered Software.
- (vi) Connectivity issues with the Covered Software over networks not built or supported by WatchGuard.
- (vii) Covered Software that has been deleted or uninstalled.
- (viii) Preventative maintenance on the Covered Software.
- (ix) Damage to, or loss of, any software or data residing or recorded on the same computer as the Covered Software. The contents of the hard drive may be deleted in the course of service. WatchGuard may install system software updates as part of your service that will prevent the software from reverting to an earlier version. Reinstallation of software programs and user data are not covered under this Plan.
- (x) Hardware Warranty coverage includes, but is not limited to, servers, computers, DVD burners, JBOD online storage devices, uninterruptable power supplies, building mounted antennas, and all related brackets and mounting hardware ("IT Equipment").
- (xi) On-Site technical service.
- (xii) Problems caused by the function of a network or viruses or other software problems introduced into the Covered Software or computer the Covered Software is running on.
- (xiii) Except as specifically provided herein, any other damages that do not arise from defects in materials and workmanship or ordinary and customary usage of the Covered Software.

Any Incident deemed out of scope as defined in this Software Maintenance Plan or any incident that occurs while no Software Maintenance Plan Agreement is in place, shall be subject to additional fees



and/or charges. The Customer will be quoted applicable charges and rates prior to any service(s) being performed. Approved service(s) will commence upon receipt of a purchase order.

OBTAINING TECHNICAL SUPPORT

You may obtain technical support by calling (800) 605-6734. The Customer Service Representative will provide you technical support.

YOUR RESPONSIBILITY

To receive service or support under the Plan, you agree to comply with the following:

- (i) Provide your agency name and serial number (if required) of the Covered Software.
- (ii) Provide information about the symptoms and causes of the problems with the Covered Software.
- (iii) Respond to requests for information, including but not limited to the associated serial number of Covered Software, version, model, IT hardware, and software including operating system and database software, third-party software installed, any peripherals devices connected or installed with the Covered Software, any error messages displayed, actions taken before the Covered Software experienced the issue and steps taken to resolve the issue.
- (iv) You shall maintain all IT Equipment related to or required by the Covered Software. Any incident arising from inadequate maintenance of these systems shall be subject to additional per incident charges
- (v) Any changes to the hardware or software environment for both the Covered Software and IT Equipment made by Customer that results in any degradation in performance will be the responsibility of you including any related costs to correct the issue. Changes include, but are not limited to, in-car installation resulting in a non-approved installation, damaged or misalignment of wireless antennas caused by the customer or weather, untrimmed trees or added obstacles that degrade wireless signal strength, added vehicles without regard for adding additional wireless access points that results in degraded performance, adding or changing video storage locations in an improper manner, adding or updating server software without the approval of WatchGuard, changes to the 4RE related network topology or architecture without consultation of WatchGuard.

GENERAL TERMS

- (i) WatchGuard may subcontract or assign performance of its obligations to third-parties but will not be relieved of its obligations to you in doing so.
- (ii) WatchGuard is not responsible for any failures or delays in performing under the Plan that are due to events outside WatchGuard's reasonable control.



- (iii) This Plan is offered and valid only in the United States of America. This Plan may not be available in all states, and is not available where prohibited by law.
- (iv) In carrying out its obligations WatchGuard may, at its discretion and solely for the purposes of monitoring the quality of WatchGuard's response, record part or all of the calls between you and WatchGuard.
- (v) WatchGuard is not obligated to renew the Software Maintenance Plan after termination. If a new Software Maintenance Plan is offered, WatchGuard will determine the price and terms.

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